> Moreover, '[a]pportionment is not required when the claims for relief are so intertwined that it would be impracticable, if not impossible, to separate the attorney's time into compensable and noncompensable units.' (*Ibid.*)" *Id*. at 349.

5. **Anticipated Fees:**
   The court disallows the amount sought for anticipated fees, especially in the absence of any reply papers and supporting evidence of any additional work performed. The Court further finds that Plaintiff's evidentiary objections filed on August 12, 2026 are unnecessary = $3,500.

No multiplier is awarded. The court finds nothing novel, difficult, or out of the ordinary about the present case. Similarly, the court does not find exceptional skill or exceptional results that would warrant a multiplier.

Total Attorneys Fees Requested: $19561.00

Total Reduction to Attorneys Fees: $9523.50

Total Attorneys Fees Awarded: $10037.50

Costs are denied without prejudice. Costs and expenses shall be claimed and contested in the accordance with the rules adopted by the Judicial Council. (Code Civ. Proc. § 1034(a).)

EMILY POZZOBON vs. FORD MOTOR COMPANY; ET AL.
Case No. CU24-06041

FORD's Motion for Summary Judgment

TENTATIVE RULING

The Parties are to appear to address Defendant FORD's failure to file its separate statement with the original motion.

MONICA M. LLOYD and PATSY A. STARKS-WILLIAMS v. FCA US, LLC
Case No. CU24-07477

FCA's Motion for Summary Judgment

TENTATIVE RULING

Defendant FCA US, LLC ("FCA") moves for summary judgment against Plaintiffs MONICA M. LLOYD and PATSY A. STARKS-WILLIAMS's first amended complaint ("1AC") alleging causes of action for (1) violation of Civil Code section 1793.2, subdivision (d), (2) violation of subdivision (b) of the same, (3) breach of the implied warranty of merchantability pursuant to Civil Code section 1791.1, and (4) fraudulent inducement. Summarized, Plaintiffs allege that they obtained a 2017 Chrysler Pacifica (the "Vehicle") under warranty from FCA. Defendant allegedly violated the Song-Beverly Consumer Warranty Act in that it failed to repair or repurchase the Vehicle after the Vehicle manifested defects within the warranty period and Defendant further concealed existence of the Vehicle's transmission defects from Plaintiffs prior to purchase.

Legal Standard. A defendant may move for summary judgment on the basis that the plaintiff cannot establish an element of his cause of action. (Code Civ. Proc., § 437c, subd. (o)(1).) A summary judgment motion is properly granted where the evidence in support of the moving party would be sufficient to sustain a judgment in his favor and his opponent does not show facts sufficient to present a triable issue of fact. (*Parker v. Twentieth Century-Fox Film Corp*. (1970) 3 Cal.3d 176, 181 (*Parker*).) The motion is not to be granted where any triable issue of material fact exists. (*Ibid*.) The affidavits of the moving party are strictly construed, and doubts as to the propriety of summary judgment should be resolved against granting the motion. (*Ibid*.) Reasonable inferences from the evidence must be drawn in the light most favorable to the opposing party. (*Syngenta Crop Protection, Inc. v. Helliker* (2006) 138 Cal.App.4th 1135, 1155.)

Affidavits, declarations, admissions, answers to interrogatories, depositions, and matters judicially noticed may all support a motion for summary judgment, provided they contain admissible evidence. (Code Civ. Proc., §§ 437c, subds. (b)(1), (d).) However, a party may not utilize his own discovery responses as evidence. (Code Civ. Proc., § 2030.250; *Great American Ins. Cos. v. Gordon Trucking, Inc.* (2008) 165 Cal.App.4th 445, 450.) Allegations in a party's own pleadings may not satisfy deficiencies in evidence. (Code Civ. Proc., § 437c, subd. (p).) Allegations in an opposing party's pleadings may be considered evidence, however. (*Parker*, *supra*, 3 Cal.3d at p. 181.)

If the party opposite a motion for summary judgment fails to file a separate statement of undisputed material facts, the court has discretion to grant the motion. (Code Civ. Proc., § 437c, subd. (b)(3).) However, even where a party fails to file any opposition to a motion for summary judgment, the court may only grant the motion if the moving party has met its burden of proof. (*Thatcher v. Lucky Stores, Inc.* (2000) 79 Cal.App.4th 1081, 1086.) A defendant's summary judgment motion in particular meets its burden of showing there is no merit to the cause(s) of action if the defendant shows that any element of the cause(s) of action cannot be proven or that there is a complete defense. (Code Civ. Proc., §437c, subd. (p)(2).) Further, a defendant does not meet its burden of showing a plaintiff cannot establish an element merely by pointing out the absence of evidence; the defendant must show that the plaintiff both does not possess and cannot reasonably obtain evidence. (*Zipusch v. LA Workout, Inc.* (2007) 155 Cal.App.4th 1281, 1286-1287.)

Objections to Evidence. In ruling on a motion for summary judgment the court need only rule on those evidentiary objections that it deems material to its disposition of the motion. (Code Civ. Proc., § 437c, subd. (q).) The court does not find the stated evidentiary objections material to the disposition of this motion.

Statute of Limitations on Warranty Claims. Commercial Code section 2725 states that a breach of warranty claim must be commenced within four years of accrual, with accrual occurring at tender of delivery unless the warranty explicitly extends to future performance of goods and discovery of the breach must await the time of such performance. In that excepted case accrual occurs when the breach is or should have been discovered. Plaintiffs obtained the Vehicle under a three-year / 30,000-mile bumper-to-bumper warranty and a five-year / 60,000-mile powertrain warranty. (Defendant's Undisputed Material Fact ("D UMF") # 3.) These are warranties that extend to the future performance of goods, per *Krieger v. Nick Alexander Imports, Inc.* (1991) 234 Cal.App.3d 205. Plaintiffs' Song-Beverly claims based on express warranties are subject to delayed discovery rules.

Likewise, the implied warranty claim Plaintiffs bring has a four-year statute of limitations, concerns a warranty coextensive with the express warranty under Song-Beverly, and can have its date of breach be a delayed discovery after the time of sale. (*Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1304-1306.)

The delayed discovery doctrine does not prevent finding Plaintiffs' Song-Beverly claims are time-barred here, however. The Vehicle had over 60,000 miles on its odometer on April 16, 2020. (D UMF #4.) All FCA's express warranties, and the associated implied warranties, were therefore expired on that date if not sooner. FCA could not have failed to conform the Vehicle to warranty at any later date as it was not under any obligation to conform the Vehicle to warranty at any later date. On the evidence presented Plaintiffs either knew or should have known on or before April 16, 2020 that the Vehicle was not conformed to warranty. The statute of limitations on Plaintiff's Song-Beverly claims ran no later than April 16, 2024 but the instant action was originally filed on September 25, 2024.

Plaintiffs lack substantial evidence that the causes of action accrued at any later date. Plaintiffs contend that they could not have realized FCA's failure to conform the Vehicle to warranty until it was taken in for repair in November 2023 and the head gasket and radiator were replaced. (Opposition to Summary Judgment at 6:13-23; P UMF #18.) That the Vehicle exhibited a problem in 2023 does not mean it was not conformed to warranty in earlier years. A warranty is not a guarantee that a product will never have problems for the indefinite future. Plaintiffs offer the undisputed fact that the Vehicle was taken in for evaporative emissions faults in 2017 and 2018, a leaking radiator in 2019, and oil leaks in 2022 and 2023. (Plaintiffs' Undisputed Material Facts ("P UMF") #17.) The facts presented suggest that the Vehicle had a handful of different problems spaced out over years but do not show how FCA failed to conform the Vehicle to warranty with regard to any given problem or how Plaintiffs could not have realized a failure to conform the Vehicle to warranty earlier. The oil leaks are not even alleged to have come up during the warranty period. Plaintiffs have failed to show delayed discovery of their warranty claims within the statute of limitations.

The court disregards Plaintiffs' argument in their opposition brief that they had an extended warranty lasting beyond April 16, 2020 because Plaintiffs do not offer supporting facts in their separate statement of undisputed material facts. The golden rule of summary judgment is that if it is not in the separate statement it does not exist. (*Scripps Clinic v. Superior Court* (2003) 108 Cal.App.4th 917, 929.)

Plaintiffs' argument that further repairs to the Vehicle in April 2023 and November 2023 to January 2024 tolled the statute means nothing where there is no proof that those repairs occurred under any warranty that concerns FCA. Those repairs appear to have been done years after pertinent warranties expired.

Fraudulent Inducement. FCA argues that the economic loss rule bars Plaintiffs' claim for fraudulent inducement. *Dhital v. Nissan North America Inc.* (2022) 84 Cal.App.5th 828 (*Dhital*) offers applicable precedent.

In *Dhital* the plaintiff brought a lemon law action over his Nissan vehicle's faulty transmission and additionally alleged fraudulent inducement. (*Dhital*, *supra*, 84 Cal.App.5th at p. 834.) The trial court sustained Nissan's demurrer on the fraudulent inducement cause of action, deciding that the economic loss rule barred the claim. (*Id*. at p. 835-836.) The appellate court reversed, finding both that the economic loss rule did not bar the claim and that the plaintiff's allegations sufficiently stated fraudulent inducement (insufficiency of pleading being an alternative ground for affirming the trial court ruling that Nissan urged on appeal). (*Id*. at p. 845.)

Regarding the economic loss rule, the *Dhital* court first described the rule: "[i]n general, there is no recovery in tort for negligently inflicted 'purely economic losses,' meaning financial harm unaccompanied by physical or property damage." (*Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 922; *Dhital*, *supra*, 84 Cal.App.5th at p. 837.) "[W]here a purchaser's expectations in a sale are frustrated because the product he bought is not working properly, his remedy is said to be in contract alone, for he has suffered only 'economic' losses…The economic loss rule requires a purchaser to recover in contract for purely economic loss due to disappointed expectations, unless he can demonstrate harm above and beyond a broken contractual promise." (*Robinson Helicopter Co., Inc. v. Dana Corp.* (2004) 34 Cal.4th 979, 988 (*Robinson*).) Examples of such harm include "where a breach of duty directly causes physical injury; for breach of the covenant of good faith and fair dealing in insurance contracts; for wrongful discharge in violation of fundamental public policy; or where the contract was fraudulently induced." (*Id*. at pp. 989-990.) "[I]n each of these cases, the duty that gives rise to tort liability is either completely independent of the contract or arises from conduct which is both intentional and intended to harm. (*Ibid.*) The *Dhital* court noted that *Robinson* states its point quite plainly: fraudulent inducement is an exception to the economic loss rule. (*Dhital* at p. 839.) *Dhital* further observed that although *Robinson* discussed affirmative misrepresentations from the defendant as opposed to fraudulent concealment it did not state that only cases of affirmative misrepresentation qualify for the exception. (*Ibid*.) Rather, *Robinson*'s plain statement was that tort recovery should be allowed where the underlying duty is independent of the contract, and fraudulent inducement by concealment originates independent of the resulting contract because it literally predates formation of the contract. (*Id*. at pp. 840-841.)

Robinson and *Dhital* make it clear that the economic loss rule does not bar Plaintiffs' fraudulent inducement claim in the instant case. Plaintiffs' claim is based on conduct independent of the resulting contract and is expressly authorized in *Robinson*.

FCA's argument that Plaintiffs cannot prove a duty to disclose is stronger. *Dhital* at page 844 approved of the idea that a car dealership acting as a manufacturer's agent for purposes of selling vehicles would suffice to create a transactional relationship. Plaintiffs here, though, present no evidence that the dealership from which they bought the Vehicle is FCA's agent. *Dhital* was a pleading case and here on summary judgment Plaintiffs have to present some evidence as opposed to mere allegations of agency.

Plaintiffs argue that FCA had a duty to disclose defects with the Vehicle because of its knowledge of those defects that was not available to Plaintiffs. This argument misreads the law. A duty to disclose does not arise from a transactional relationship *or* exclusive knowledge of information. Outside of the fiduciary context it arises from a transactional relationship *and* exclusive knowledge of information (or active concealment or partial representations). (*LiMandri v. Judkins* (1997) 52 Cal.App.4th 326, 336-337.) Therefore, Plaintiffs' failure to contest the existence of a transactional relationship between them and FCA by presentation of evidence is fatal to their fraudulent inducement claim on summary judgment. Plaintiffs' citation to *Bader v. Johnson & Johnson* (2022) 86 Cal.App.5th 1094, 1132 for the proposition that dealers are manufacturers' agents is not correct. What that case says in the relevant analysis is that a jury might have found a transactional relationship in a situation where there "evidence showing that [company] was involved in retail sales of [product] to consumers and profited therefrom." (*Ibid*.) Plaintiffs here lack like evidence.

Conclusion. FCA's motion for summary judgment is granted.

JANINE BAILON vs. FCA US, LLC; ET AL.
Case No. CU25-04346

FCA's Motion for Judgment on the Pleadings

<u>TENTATIVE RULING</u>

Defendant FCA US, LLC ("FCA") moves for judgment on the pleadings against Plaintiff JANINE BAILON's complaint relevantly alleging violations of the Song-Beverly Consumer Warranty Act (the "Act") and fraudulent inducement. Summarized, Plaintiff's complaint alleges that FCA violated the Act in that it failed to repair or repurchase Plaintiff's 2019 Jeep Cherokee (the "Vehicle") after the Vehicle manifested defects